

M/s Simran Industries v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 November 2015 · WRIT - C No. 41786 of 2015 · **Writ dismissed; relegated to Supply Code for disputed bill.**

HEADNOTE

A writ against disconnection for non-payment of electricity dues is not maintainable where the consumer is dissatisfied with the amount demanded in the licensee's bill. The remedy lies under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

M/s Simran Industries of Sonpur Aklee, Ahraura, filed a writ in the Allahabad High Court against the State of U.P. and others after Purvanchal Vidyut Vitaran Nigam Limited disconnected supply for non-payment of dues. The consumer was dissatisfied with the amount demanded in the licensee's bill. The petition was dismissed for non-prosecution on 6 August 2015. On 27 November 2015 the Court allowed a restoration application, recalled that order, restored the writ, and heard it the same day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

alternative remedy for disputed electricity bill

HOLDING

If the consumer is not satisfied with the amount demanded under a bill issued by the distribution licensee, for whatever reason, the remedy is under the Electricity Supply Code, 2005, and a writ petition will be dismissed.

¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy

A writ against disconnection for non-payment of electricity dues is not maintainable where the consumer is dissatisfied with the amount demanded in the licensee's bill. The remedy lies under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED DEMAND AND DISCONNECTION FOR NON-PAYMENT

The Court did not examine the bill or the disconnection on merits; it relegated the consumer to the Supply Code remedy. ¶ 1